

HOUSE BILL 2512

By Grills

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to federal scholarship tax credit.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 1, is amended by adding the following as a new part:

49-1-1301. Federal scholarship tax credit – election.

The department of education shall elect to participate in the federal tax credit established under Section 70411 of Pub. L. No. 119-21 for individuals who make qualified contributions to scholarship granting organizations.

49-1-1302. List of scholarship granting organizations.

(a) The department of education shall:

(1) By no later than January 1, annually submit to the United States secretary of the treasury and publish on the department's website a list of all scholarship granting organizations that meet the requirements under § 70411 of Pub. L. No. 119-21 and are located in this state;

(2) Certify to the United States secretary of the treasury the department's authority to submit the list on behalf of the state;

(3) Accept submissions from scholarship granting organizations throughout the year for inclusion on the list submitted pursuant to subdivision (a)(1); and

(4) Comply with any other requirement under Section 70411 of Pub. L. No. 119-21, including any applicable federal regulations or guidance, to ensure

that this state is eligible to participate in taxable years beginning after December 31, 2026.

(b) A department, agency, or board of state government does not have authority to promulgate a rule to implement this section.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.